

5. S-PR-0013363 In Re the Conservatorship of Assenza, Harold Benedict

Appearance of conservator of the estate and of counsel is required for continued post-appointment review hearing.

The court retains jurisdiction to approve final accounts and reports. Prob.C. § 2630.

Missing inventory and appraisal of the estate (form GC-040), due within 90 days of the order of appointment. Prob.C. § 2610. The court may excuse the filing of an I&A, if appropriate to the circumstances. Prob.C. § 2633.

6. S-PR-0014096 In Re the Conservatorship of Shawl, Robert Lloyd

Petition for attorney fees is recommended for approval as prayed.

7. S-PR-0014219 In Re the Conservatorship of Errek, Penelope Lynn

Appearance is required for hearing on petition for appointment of conservator of the estate.

Missing citation for amended petition. Amended petition requires completely new notice. C.R.C. 7.53. Missing 15 days' personal service of citation with copy of amended petition to proposed conservatee.

Missing notice of hearing for amended petition. Amended petition requires completely new notice. C.R.C. 7.53. Missing 15 days' service of notice of hearing with copy of amended petition to all 2d-degree relatives of proposed conservatee and to counsel for proposed conservatee.

Clarification is needed: amended petition alleges grounds for conservatorship of the person (¶ 5c(1)); no such powers are requested.

Court determination is needed as to request to waive bond: petitioner cites no authority for the proposition that he is exempt from bond as an officer of the court. While he appears to qualify as a Prob.C. § 1811 nominee, there is no provision in Prob.C. § 2320 et seq. for waiver of bond in a conservator nomination (compare § 2324, which permits waiver of bond in a guardianship nomination).

Missing Attachment 1d to the petition (see ¶ 1d).

Clarification is needed: no medical powers are requested (¶ 1g), but grounds for such powers are alleged (¶ 9). No conservatorship of the estate is requested.

Missing medical capacity declaration.

Missing appearance / response of court-appointed counsel for proposed conservatee.